

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 18-025

**Amendments to Title 8, Chapter 4 of the Chickasaw Nation Code
(Conduct of an Election)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

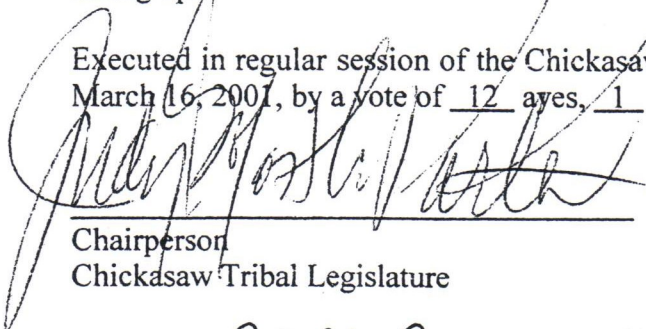
WHEREAS, the Chickasaw Tribal Legislature has reviewed Title 8, Chapter 4 of the Chickasaw Nation Code and finds it necessary to amend said Title and Chapter to help promote clarity.

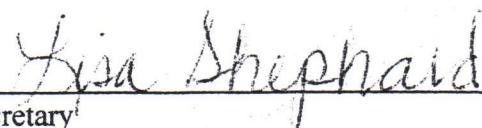
NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves the following amendments to Title 8, Chapter 4 of the Chickasaw Nation Code. Additions will be shown in shading and deletions will be shown as stricken. All other Sections of Title 8, Chapter 4 are not affected by this resolution.

SECTION 8-430 RUNOFF ELECTION PROCEDURES.

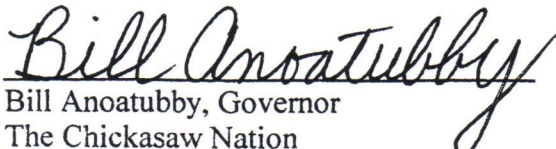
The runoff election ballots shall be sent to voters on the first Tuesday of September in the year of the election. The ballots must be returned by the third Wednesday in September, no later than 10:30 a.m., and shall be counted on the same day (Wednesday) at the same location and under the same procedures and regulations as those used in the regular election. Results shall be announced on Wednesday after the ballots are counted and shall be certified under regular election rules. The successful runoff candidate must receive more than fifty percent (50%) of the total votes in order to be duly elected. If the canvas of the tally of results of a runoff election reveal that the two (2) runoff candidates have received the same number of votes, the Election Commission shall conduct a recount of all the ballots. No fee for such recount shall be charged to the runoff candidates. Should a tie exist at the completion of the recount, the Election Commission shall decide the winner by the toss of a coin. The winner being the candidate who successfully chooses the side landing facing up.

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on March 16, 2001, by a vote of 12 ayes, 1 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur:


Bill Anoatubby, Governor
The Chickasaw Nation

Date:

MAR 16 2001

CHICKASAW TRIBAL LEGISLATURE

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Amendments to Title 8, Chapter 4
of the Chickasaw Nation Code
(Conduct of an Election)**

Explanation: This resolution approves of amendments to Title 8, Chapter 4 to improve clarity.

Requested By: Legislative Committee

Presented By: Lisa Shephard, Chairman
Legislative Committee